FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF Richmond

U.S. BANK TRUST NATIONAL ASSOCIATION, NOT IN ITS INDIVIDUAL CAPACITY, BUT SOLELY AS TRUSTEE OF LSF9 MASTER PARTICIPATION TRUST

Plaintiff,

-against-

N. PATRICK MARTIN, SUSTAINABLE NEIGHBORHOODS LLC, BOARD OF DIRECTORS OF BEACHVIEW HOMEOWNERS ASSOCIATION, INC., NEW YORK CITY PARKING VIOLATIONS BUREAU, NEW YORK CITY TRANSIT ADJUDICATION BUREAU, UNITED STATES OF AMERICA ON BEHALF OF THE IRS

Defendant.

Index No. 135176/2023

MORTGAGED PROPERTY:
41 Beachview Avenue
Staten Island, NY 10306

COUNTY: Richmond
SBL #: Block 3686 Lot 51
Sale Date: April 02,2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 520,205.74
2. Adjusted Judgment Amount (Upset Price): $ 649,932.22
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 644,855.20
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ _____
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 1,250.00

Referee Name: Jace C. McColley, Esq. Telephone: 732-494-8404
Address: 540 Middlesex Avenue, Metuchen, NJ 08840-1826
Email: JMccolley@cmlaw.com Signature/Date: [signature]

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Gross Polowy LLC
Address: 1775 Wehrle Drive, Suite 100, Williamsville, NY 14221
Telephone: (716) 204-1700
Email: info@grosspolowy.com
Signature/Date: _____

C. To Be Completed by Purchaser

Name: Plaintiff
Address: _____
Telephone: _____
Email: _____
Signature/ Date: _____

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19